



File No.: EXP202212783

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The COMMANDER'S OFFICE OF GRANADA (*hereinafter, the complainant), on November 24, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against an individual identified as A.A.A. with NIF ***NIF.1 (hereinafter, the defendant), for the installation of a video surveillance system located at CALLE ***DIRECCIÓN.1, GRANADA, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant provides a Complaint Record, dated November 5, 2022, which states that the defendant is responsible for an establishment that has a video surveillance system inside, without proper signage indicating the monitored area.

The documents provided are: - Reports made by the FFCCSE

SECOND: The defendant was previously subject to a Double Letter file ***EXP.1 for the same facts, being notified on March 16, 2022, according to the acknowledgment of receipt from Correos. No corrective measures have been taken.

THIRD: On March 24, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the deadline granted for the submission of allegations, it has been confirmed that no allegations have been received from the defendant. Consulting the database of this Agency, after the double attempt to notify the Initiation Agreement, it is recorded as published in the B.O.E dated 09/05/23.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed.

Therefore, taking into account that the defendant has not made allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

First. The facts arise from the complaint dated 24/11/22, through which the Security Forces report the presence of a video surveillance system without the proper signage regarding it.

A Complaint Record is provided where the presence of the cameras is confirmed, as well as the total absence of informative signage regarding it (Annex Photographic Report numbers 1-4).

Second. A.A.A., with NIF ***NIF.1, is identified as the main responsible party.

Third. It is evidenced that in the establishment managed by the defendant, there is a video surveillance camera system without the proper signage indicating that it is a monitored area.

Fourth. No response has been received that proves that the establishment has the required form(s) available to customers to exercise their rights under Articles 15-22 of the GDPR.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Analyzing the facts subject to transfer, it is noted that the devices subject to complaint do not have the proper signage indicating that it is a area.

"That, in no part of the establishment, both in its interior and exterior areas, is there any informative sign indicating that such cameras exist or identifying the person responsible for them (...)"—Complaint Record Command Post Guardia Civil Granada—.

Article 77, section 5 of Law 39/2015 (October 1) provides as follows:

"The documents formalized by officials recognized as authorities and in which, observing the corresponding legal requirements, the facts verified by them are recorded, shall serve as proof of these facts unless proven otherwise."

Article 22, section 4 of the LOPDGDD provides: "The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device."

The aforementioned facts imply an infringement of the content of Article 13 GDPR, as there are no informative sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main responsible party for the processing of the data.

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Article 13 GDPR "Information to be provided when personal data is obtained from the data subject"

1. When personal data relating to a data subject is obtained from that subject, the data controller shall provide all the information indicated below at the time the data is obtained: a) the identity and contact

details of the controller and, where applicable, of their representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they shall expire after three years” and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

IV

Article 83.5 GDPR provides as follows: “Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the rights of the data subjects under Articles 12 to 22 (...).

V

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate the initiation of further administrative sanctioning proceedings.

For guidance, it is advisable to remember that there are model forms available on the website of this Agency www.aepd.es Surveillance Guide, provided that they have a header (for example, Name of the establishment), indication of the regulations, right to exercise (e.g., access) and the corresponding spaces for Purpose of request and signature.

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Lastly, it is reminded that if the described behavior continues, a new sanctioning procedure may be initiated for continued infringement, taking into account the broad recommendations outlined, to proceed with a new assessment of the sanction to be imposed, if applicable.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €500 (five hundred euros).

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ONE MONTH, provide evidence of compliance with the following measure.

- A photograph must be provided with date and time showing an informational sign(s) adapted to the current regulations indicating that it is a video-monitored area, indicating the responsible party, how to exercise rights under the current regulations, and the address to which affected parties can direct their inquiries.

- It must be evidenced that there are form(s) available to clients (users) to exercise their rights under the current data protection regulations.

THIRD: NOTIFY this resolution to Mr. A.A.A. and inform the claimant of the outcome of the proceedings.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must fulfill the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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